

25STCV35734 25STCV35734

County: los-angeles

Division: Civil Law and Motion

Department: 408

Hearing date: 2026-06-24

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Case Number: 25STCV35734 Hearing Date: June 24, 2026 Dept: 408

Defendants Institute

of Islamic Studies, Inc. and Alazzawi Saad Aldin Ali's Counsel Sarah Shapero's Motion to be

Relieved as Counsel is GRANTED, effective upon the filing of proof of service

showing service of the signed order.

I.

BACKGROUND

On December 8, 2025, Plaintiff

Jefferson Equities, LLC ("Plaintiff") filed a unlawful detainer complaint

against Defendants Institute of Islamic Studies, Inc. and Saad Aldin Ali Alazzawi

("Defendants").

On December 26, 2025,

Defendants filed an answer to Plaintiff's complaint.

On January 14, 2026, pursuant

to Plaintiff's request, default was entered against all other unnamed

occupants.

On February 4, 2026, pursuant

to written stipulation, Judgment was entered for Plaintiff and against

Defendants for a total of \$0.00; Judgment for possession was granted

against all unnamed occupants pursuant to Code of Civil Procedure section

415.46; restitution and possession of the premises located at 3406-3420 W.

Jefferson Blvd., Los Angeles, CA 90018 ("Subject Property") was granted for Plaintiff;

Rental Agreement under which the Subject Property is held was cancelled; Lease

Agreement under which the Subject Property is held was forfeited.

On May 21, 2026, counsel for Defendants,

Sarah Shapero ("Counsel"), filed: (1) MC-051, Motion to be Relieved as Counsel; (2)

MC-052, Declaration in Support of Motion to be Relieved as Counsel; (3) MC-053,

Proposed Order; and (4) Proof of Service. No opposition or other responsive

pleading has been filed.

II.

LEGAL STANDARD

"The attorney in an

action or special proceeding may be changed at any time before or after

judgment or final determination, as follows: 1. Upon the consent of both client

and attorney, filed with the clerk, or entered upon the minutes; 2. Upon the

order of the court, upon the application of either client or attorney, after

notice from one to the other." (Code Civ. Proc., § 284.)

An attorney moving

to be relieved as counsel under California Code of Civil Procedure section

284(2) must meet the requirements set out in California Rules of Court, rule

3.1362. To comply with Rule 3.1362, the moving party must submit the following

forms: (1) Notice of Motion and Motion to be Relieved as Counsel; (2)

Declaration in Support of Attorney's Motion to be Relieved as Counsel; and (3)

Order Granting Attorney's Motion to be Relieved as Counsel. (Cal. Rules of

Court, Rule 3.1362, subd. (a), (c), (e).)

The moving party

must serve the aforementioned forms on the client and all other parties who

have appeared in the case. (Cal. Rules of Court, Rule 3.1362, subd. (d).)

Further, when the client is served by mail, the attorney's declaration must

show that the client's address was confirmed within the last 30 days and how it

was confirmed. (Ibid.)

Absent a showing of

resulting prejudice, an attorney's request for withdrawal should be granted. (People

v. Prince (1968) 268 Cal.App.2d 398, 406.)

III.

DISCUSSION

Counsel's motion complies with the requirements of California Rules of Court, rule 3.1362, in that Counsel provided a motion to be relieved as counsel; a declaration in support; a proposed order granting Counsel's motion; and proof of service as to Defendants.

The declaration states that there has been such a severe breakdown of the attorney-client relationship such that Defendants have been filing or attempting to file documents in this court bearing Counsel's name without the consent of Counsel. (Shapero Decl., ¶ 2.)

The court determines that the requirements of Rule 3.1362 enumerated above have been sufficiently met. The court grants the requested withdrawal effective upon the filing of proof of service showing service of the signed order to Defendants.

IV.

CONCLUSION

Defendants Institute of Islamic Studies, Inc. and Alazzawi Saad Aldin Ali's Counsel Sarah Shapero's Motion to be Relieved as Counsel is GRANTED, effective upon the filing of proof of service showing service of the signed order.